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Top Tax and Customs officials warned as early as 2017 about 'reprehensible' approach to benefit parents.

The top management of the Tax and Customs Administration's Benefits Department received advice as early as 2017 to offer compensation to parents affected by the benefits scandal. One of their own civil servants, who was supposed to ensure that the Benefits Department complied with the law, called the service's conduct reprehensible and unlawful. Instead of following the advice, the service continued to pursue lawsuits against parents for alleged fraud.

This is evident from an internal memo from the Tax and Customs Administration that was sent to the House of Representatives today by State Secretary for Finance Van Huffelen. The document has now been made public under pressure from the House of Representatives. CDA member Pieter Omtzigt had specifically requested it.

Legal principles violated

In March 2017, the Council of State ruled that the Tax and Customs Administration had wrongfully terminated the childcare allowance for parents who were clients of a childminder agency in Eindhoven. The civil servant analyzed the judgment and concluded that the Benefits Department had violated various legal principles in the case. The actions taken were negligent and unlawful. The civil servant strongly advised the management team (MT) to declare the parents' objections well-founded and to offer them compensation.

The Management Team disregarded the advice, and the lawsuits continued. In an accompanying letter to the House, State Secretary Van Huffelen does not address the question of why the advice was ignored. However, according to her, it is indicative of the state of affairs at the Benefits Agency: "The memo shows once again that critical signals from employees regarding working methods unfortunately only received the attention they deserved much too late."

Not shared

It is remarkable that the memo is only surfacing now, while there has been much debate surrounding the childcare benefits scandal for years. The document was not shared with the Donner Committee, which investigated the affair and drafted a compensation scheme for thousands of parents. The parliamentary inquiry committee, which begins public hearings next month, was also unaware of it. Only the Government Audit Service, which also conducted an investigation, had access to the memo.

Members of Parliament from various parties are reacting angrily to the memo that has now been made public. They conclude that the affair could have been brought to an end much earlier. Thousands of parents have run into trouble because of the case, as they were wrongly accused of fraud. Last week it emerged that only ninety parents have actually been helped and received money.

Anger in Parliament over persistent delays in handling of benefits scandal



250 affected parents helped before the end of the year

